

MINUTES OF THE REGULAR MEETING OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, HELD ON MARCH 20, 2017 AT 7:00 P.M. IN THE CIVIC CENTER, 16327 LAKEVIEW, JERSEY VILLAGE, TEXAS.

A. CALL TO ORDER AND ANNOUNCE A QUORUM IS PRESENT

The meeting was called to order by Mayor Ray at 7:02 p.m. with the following present:

Mayor, Justin Ray
Council Member, Andrew Mitcham
Council Member, Greg Holden
Council Member, C. J. Harper
Council Member, Sheri Sheppard
Council Member, Gary Wubbenhorst

City Manager, Austin Bleess
City Secretary, Lorri Coody
City Attorney, Leah Hayes

Staff in attendance: Mark Bitz, Fire Chief; Eric Foerster, Chief of Police; Isabel Kato, Finance Director; Kevin T. Hagerich, Public Works Director; and Kimberly Terrell, Director of Parks and Recreation.

B. INVOCATION AND PLEDGE OF ALLEGIANCE

1. Prayer & Pledge by: Council Member Sheri Sheppard

C. CITIZENS COMMENTS

Citizens who have signed a card and wish to speak to the City Council will be heard at this time. In compliance with the Texas Open Meetings Act, unless the subject matter of the presentation is on the agenda, the City staff and City Council Members are prevented from discussing the subject and may respond only with statements of factual information or existing policy. Citizens are limited to five (5) minutes for their presentation to the City Council.

Curtis Haverty, 15405 Ashburton, Jersey Village, Texas – Mr. Haverty welcomed Austin Bleess to the City as the new City Manager. He told him that he has inherited a great city and a great team of department heads. Mr. Haverty then gave particulars about the capability of each department head, and closed with thanking Mr. Bleess for choosing to come to Jersey Village.

D. CITY MANAGER'S REPORT

City Manager Bleess gave his report as follows, calling special attention to the 2016 Racial Profiling Report:

- 1. Monthly Fund Balance Report, Enterprise Funds Report, Governmental Funds Report, Property Tax Collection Report – January 2016, General Fund Budget Projections as of February 2017 and Utility Fund Budget Projections – February 2017**
- 2. Open Records Requests – Non-Police, Recreational Vehicle Registration Update**
- 3. Fire Departmental Report and Communication Division's Monthly Report**
- 4. Police Activity Report, Warrant Report, Investigations/Calls for Service Report, Staffing/Recruitment Report, and Police Open Records Requests**
- 5. Municipal Court Collection Report, Municipal Court Activity Report, Municipal Court Courtroom Activity Report, Speeding and Stop Sign Citations within Residential Areas Report, and Court Proceeds Comparison Report.**
- 6. Public Works Departmental Report and Construction and Field Projects Update**

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

- 7. Golf Course Monthly Report, Golf Course Financial Statement Report, Golf Course Budget Summary; Golf Course Social Media Summary Report, and the Parks and Recreation Departmental Report**
- 8. Report from Code Enforcement**
- 9. 2016 Racial Profiling Report**

E. CONSENT AGENDA

The following items are considered routine in nature by the City Council and will be enacted with one motion and vote. There will not be separate discussion on these items unless requested by a Council Member, in which event the item will be removed from the Consent Agenda and considered by separate action.

- 1. Consider approval of the Minutes for the Regular Session Meeting held on February 20, 2017.**
- 2. Consider Resolution No. 2017-18, declaring surplus equipment and authorizing disposition by the City Manager in accordance with the City's Administrative Procedures.**

RESOLUTION NO. 2017-18

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, DECLARING SURPLUS EQUIPMENT AND AUTHORIZING DISPOSITION BY THE CITY MANAGER IN ACCORDANCE WITH THE CITY'S ADMINISTRATIVE PROCEDURES.

Council Member Mitcham moved to approve items 1 and 2 on the consent agenda. Council Member Harper seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard and Wubbenhorst

Nays: None

The motion carried.

F. REGULAR AGENDA

- 1. Consider Resolution No. 2017-19, reviewing and accepting the 2016 Comprehensive Annual Financial Report (CAFR).**

Isabel Kato, Finance Director, introduced the item. The City of Jersey Village is required to publish each year a complete set of financial statements presented in conformity with Generally Accepted Accounting Principles (GAAP), and audited in accordance with generally accepted auditing standards by a firm of licensed certified public accountants.

She introduced the Consultant Robert Belt from Belt Harris & Associates LLLP who gave an overview of the audit findings and the financial position of the City.

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

After a brief question and answer session concerning the findings, Council Member Holden moved to approve Resolution No. 2017-19, reviewing and accepting the 2016 Comprehensive Annual Financial Report (CAFR). Council Member Wubbenhorst seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

RESOLUTION NO. 2017-19

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, REVIEWING AND ACCEPTING THE 2016 COMPREHENSIVE ANNUAL FINANCIAL REPORT (CAFR).

- 2. Consider Ordinance No. 2017-09, amending the General Fund Budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017 in the amount not to exceed \$1,600,000 to increase line item 01-12-5023 (Grants and Incentives) from the General Fund balance in order to cover the costs associated with the 85% Sales Tax paid by CEMEX in accordance with the Chapter 360 – Economic Development Agreement.**

Isabel Kato, Director of Finance, introduced the item. Background information is as follows: On June 1, 2015, under Resolution No. 2015-26, City Council authorized the City Manager to enter into an agreement with Southwest Developers LLC, a developer seeking an incentive package from the City on behalf of CEMEX. As a part of the agreement, the City agreed to reimburse Southwest Developers LLC for 85% of the sales tax revenue paid by CEMEX.

During Fiscal Year 2015-2016, the sales tax reimbursement to Southwest Developers LLC was paid directly from the City's Sales Tax Revenue Account. Following this same practice, the 2016-2017 fiscal budget was set up in the same manner, providing that reimbursements to Southwest Developers LLC be made directly from the City's Sales Tax Revenue Account. However, during this year's annual audit by Belt, Harris, Pechacek, it was recommended that the City use an expenditure account to reimburse Southwest Developers LLC in order that the General Fund Sales Tax Revenues are not under-stated. Therefore, in accordance with the Auditor's recommendation, City Staff has created a new account in the General Fund (01-12-5023) in order to make the reimbursement payments to Southwest Developers for Fiscal Year 2016-2017.

In approving this budget amendment, the General Fund Balance will not be affected as this allocation merely transfers the payments from a revenue account to an expense account. Accordingly, Staff requests approval of the Ordinance in order to accommodate the Auditor's recommendation.

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

With limited discussion on the matter, Council Member Sheppard moved to approve Ordinance No. 2017-09, amending the General Fund Budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017 in the amount not to exceed \$1,600,000 to increase line item 01-12-5023 (Grants and Incentives) from the General Fund balance in order to cover the costs associated with the 85% Sales Tax paid by CEMEX in accordance with the Chapter 360 – Economic Development Agreement. Council Member Mitcham seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

ORDINANCE NO. 2017-09

AN ORDINANCE OF THE CITY OF JERSEY VILLAGE, TEXAS, AMENDING THE GENERAL FUND BUDGET FOR THE FISCAL YEAR BEGINNING OCTOBER 1, 2016 AND ENDING SEPTEMBER 30, 2017 IN THE AMOUNT NOT TO EXCEED \$1,600,000 TO INCREASE LINE ITEM 01-12-5023 (GRANTS AND INCENTIVES) FROM THE GENERAL FUND BALANCE IN ORDER TO COVER THE COSTS ASSOCIATED WITH THE 85% SALES TAX PAID BY CEMEX IN ACCORDANCE WITH THE CHAPTER 360 – ECONOMIC DEVELOPMENT AGREEMENT.

Mayor Ray then called the next three (3) items out of order as follows:

5. Consider Resolution No. 2017-22, authorizing the Public Works Department to purchase a Trailer Mounted Godwin DBS NC 100 Back-Up Pump Station for use at City facilities.

Kevin T. Hagerich, Director of Public Works, introduced the item. Background information is as follows: During the Fiscal Year 2016/2017 budget process, there was a supplemental item approved in the amount of \$60,000.00 for a portable generator. There was some concern expressed during the process about the expenditure.

Reviewing the need for a back-up system at our lift stations in the event of an emergency, staff researched options available to satisfy our requirement. It was determined that during a typical lift station failure, 18% of incidents are caused by power outages; if there are mechanical issues with the pump, a generator will not be of assistance during an emergency. Thus, we looked for something that would be a “better fit” for our application.

After much research and a few demonstrations, it was determined that the Trailer Mounted Godwin DBS NC 100 Back-Up Pump could provide back up support for a lift station failure and the total price was under budget. The vendor for this equipment is local, and presently provides support for the City’s lift stations.

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

On a separate note, I would like to test this product during an anticipated heavy rain event. I believe that we could take it to the detention pond and draw water down by pumping it into the bayou until such time it would conflict with bayou waters. This would allow for more detention capacity and would take longer for water to flow from the detention basin through the engineered weir.

Council engaged in discussion about the cost of the generator and the capability. Mr. Hagerich explained that this solution is \$8,000 less than what was budgeted. It will run the lift station and it is self-contained.

With no further discussion, Council Member Harper moved to approve Resolution No. 2017-22, authorizing the Public Works Department to purchase a Trailer Mounted Godwin DBS NC 100 Back-Up Pump Station for use at City facilities. Council Member Mitcham seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

RESOLUTION NO. 2017-22

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, AUTHORIZING THE PURCHASE OF A TRAILER MOUNTED GODWIN DBS NC 100 BACK-UP PUMP STATION FOR USE AT CITY FACILITIES.

- 6. Consider Ordinance No. 2017-10, amending the City's General Fund budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017, in the amount of \$11,000, and authorizing the purchase of two (2) additional speed signs.**

Kevin T. Hagerich, Director of Public Works, introduced the item. Background information is as follows: Public Works recently installed solar powered speed signs in fourteen (14) locations throughout the City. Unfortunately, one of the signs has already been vandalized. This incident caused the weather seal to be cracked, leaving the electronics exposed to the elements. City staff needs to order a replacement for the damaged sign, and one additional to keep on-hand, when the need arises for a future replacement.

City staff is respectfully requesting the approval of this Ordinance in order to increase line item 01-32-3534 (Streets – Parts & Materials) by \$11,000, and authorize the purchase of two (2) additional speed signs.

With limited discussion on the matter, Council Member Harper moved to approve Ordinance No. 2017-10, amending the City's General Fund budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017, in the amount of \$11,000,

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

and authorizing the purchase of two (2) additional speed signs. Council Member Holden seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

ORDINANCE NO. 2017-10

AN ORDINANCE OF THE CITY OF JERSEY VILLAGE, TEXAS, AMENDING THE GENERAL FUND BUDGET FOR THE FISCAL YEAR BEGINNING OCTOBER 1, 2016 AND ENDING SEPTEMBER 30, 2017 BY INCREASING LINE ITEM 01-32-3534 (STREETS – PARTS & MATERIALS) IN THE AMOUNT NOT TO EXCEED \$11,000 AND AUTHORIZING THE PURCHASE OF TWO (2) ADDITIONAL SPEED SIGNS.

7. **Consider Ordinance No. 2017-11, amending the City's General Fund budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017, by increasing line item 01-32-3001 (Streets – Salaries) in the amount not to exceed \$45,000 in order to cover salary and benefits for a Temporary Field Supervisor.**

Kevin T. Hagerich, Director of Public Works, introduced the item. Background information is as follows: The Director of Public Works recently received an employment application from a licensed operator, who has experience with both Jersey Village wastewater facilities. This applicant would be hired for the Field Supervisor position, as the City's current employee is expected to retire later this year.

On tonight's agenda is an item asking for authorization to hire this applicant now in order to receive proper training before the seasoned personnel leaves the City. This agenda item is to appropriate funding to cover salary and benefits for the applicant, should authorization be granted for employment.

City staff is respectfully requesting the approval of this Ordinance in order to increase line item 01-32-3001 (Streets – Salaries) by \$45,000.

With limited discussion on the matter, Council Member Wubbenhorst moved to approve Ordinance No. 2017-11, amending the City's General Fund budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017, by increasing line item 01-32-3001 (Streets – Salaries) in the amount not to exceed \$45,000 in order to cover salary and benefits for a Temporary Field Supervisor. Council Member Sheppard seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

The motion carried.

ORDINANCE NO. 2017-11

AN ORDINANCE OF THE CITY OF JERSEY VILLAGE, TEXAS, AMENDING THE GENERAL FUND BUDGET FOR THE FISCAL YEAR BEGINNING OCTOBER 1, 2016 AND ENDING SEPTEMBER 30, 2017 BY INCREASING LINE ITEM 01-32-3001 (STREETS – SALARIES) IN THE AMOUNT NOT TO EXCEED \$45,000.

Mayor Ray resumed calling the regular order of the agenda as follows:

- 3. Consider Resolution No. 2017-20, finding that CenterPoint Energy Resources D/B/A CenterPoint Energy Entex and CenterPoint Energy Texas Gas’ (“CenterPoint” or “Company”) statement of intent to increase rates filing within the City should be denied; finding that the City’s reasonable rate case expenses shall be reimbursed by the Company; finding that the meeting at which this Resolution is passed is open to the public as required by law; requiring notice of this Resolution to the Company and Legal Counsel.**

Leah Hayes, City Attorney, introduced the item. Background information is as follows: On November 16, 2016, CenterPoint filed a Statement of Intent to Increase Rates application with each of the cities in their Houston and Texas Coast Division service areas. In the filing, the Company asserted that it is entitled to a \$31.0 million increase or a 10.4% increase over current adjusted revenues, excluding gas costs. CenterPoint also proposed to consolidate the Houston and Texas Coast Division service areas into one Texas Gulf Division.

On November 21, 2016, this Council adopted a Resolution to extend the effective date of CenterPoint’s proposed rate increase to give the City time to review the rate-filing package.

The model staff report that was included in the meeting packet provides a more detailed account of the activities concerning this rate case. The purpose of this Resolution is to deny the rate application and consolidation proposed by CenterPoint.

Since the agenda posting, Ms. Hayes explained that the Gulf Coast Coalition’s Attorney Thomas Brocato, reported on Friday that the parties in this rate case have reached a settlement in principle. The result of the settlement is as follows:

- a. The Settlement reflects a 47% reduction to the Company’s requested overall revenue increase.
- b. The customer charge has been reduced for all Residential customers.
- c. The Settlement cuts the proposed base rate increase to Houston/Conroe Residential customers in half and provides for a 2.3% base rate decrease to Texas Coast Residential customers (Texas Coast Small General Service customers also receive a base rate decrease, but they did under the Company’s proposed rates as well).

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

Ms. Hayes further explained that the passage of the Resolution, the subject of this agenda item, is still needed because the settlement has not yet been approved by the Railroad Commission.

With limited discussion on the matter, Council Member Mitcham moved to approve Resolution No. 2017-20, finding that CenterPoint Energy Resources D/B/A CenterPoint Energy Entex and CenterPoint Energy Texas Gas' ("CenterPoint" or "Company") statement of intent to increase rates filing within the City should be denied; finding that the City's reasonable rate case expenses shall be reimbursed by the Company; finding that the meeting at which this Resolution is passed is open to the public as required by law; requiring notice of this Resolution to the Company and Legal Counsel. Council Member Sheppard seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

RESOLUTION NO. 2017-20

A RESOLUTION OF THE CITY OF JERSEY VILLAGE, TEXAS FINDING THAT CENTERPOINT ENERGY RESOURCES D/B/A CENTERPOINT ENERGY ENTEX AND CENTERPOINT ENERGY TEXAS GAS' ("CENTERPOINT" OR "COMPANY") STATEMENT OF INTENT TO INCREASE RATES FILING WITHIN THE CITY SHOULD BE DENIED; FINDING THAT THE CITY'S REASONABLE RATE CASE EXPENSES SHALL BE REIMBURSED BY THE COMPANY; FINDING THAT THE MEETING AT WHICH THIS RESOLUTION IS PASSED IS OPEN TO THE PUBLIC AS REQUIRED BY LAW; REQUIRING NOTICE OF THIS RESOLUTION TO THE COMPANY AND LEGAL COUNSEL.

4. Consider Resolution No. 2017-21, authorizing the City Manager to seek energy proposals and execute contract documents to provide energy for city facilities.

Kevin T. Hagerich, Director of Public Works, introduced the item. Background information is as follows: The City's current contract with Cavallo Energy, through the Texas General Land Office (GLO), for energy provided to City facilities will end June 30, 2017. At this time, city staff would like to take a proactive approach, and seek a competitive rate for energy costs before the contract expires. On the City's current contract, the rate paid for electricity is \$0.05072 per kWh (kilowatt hour).

City Staff will monitor the day to day activity in the natural gas market for competitive rates. We would like the City Manager to be able to take advantage of any price breaks we may see, and sign a contract that would allow the City to lock-in a price for energy, for a period not to exceed five years. In accordance with section 252.022 of the Texas Local Government Code, the City is exempt from bidding procedures for an electricity services contract.

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

Council engaged in limited discussion about the term of the contract in relation to energy costs.

With no further discussion on the matter, Council Member Holden moved to approve Resolution No. 2017-21, authorizing the City Manager to seek energy proposals and execute contract documents to provide energy for city facilities. Council Member Wubbenhorst seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

RESOLUTION NO. 2017-21

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, AUTHORIZING THE CITY MANAGER TO SEEK ENERGY PROPOSALS AND EXECUTE CONTRACT DOCUMENTS TO PROVIDE ENERGY FOR CITY FACILITIES.

8. Consider Resolution No. 2017-23, authorizing the Public Works Director to hire a temporary employee for the Field Supervisor position.

Kevin T. Hagerich, Director of Public Works, introduced the item. He told City Council that is item is to approve the temporary position discussed previously during this meeting.

With no discussion on the matter, Council Member Sheppard moved to approve Resolution No. 2017-23, authorizing the Public Works Director to hire a temporary employee for the Field Supervisor position. Council Member Mitcham seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

RESOLUTION NO. 2017-23

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, AUTHORIZING THE CITY TO OFFER TEMPORARY EMPLOYMENT FOR A FIELD SUPERVISOR.

9. Consider Ordinance No. 2017-12, amending the Parks & Recreation budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017 by increasing line item 01-39-6516 in the amount of \$9,601 to repair the asphalt driveway connected to Jersey Meadows Drive.

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

Kimberly Terrell, Director of Parks and Recreation, introduced the item. Background information is as follows: The asphalt portion of driveway between Jersey Meadows Drive and the golf course bridge has severely deteriorated leaving low spots and potholes. The asphalt driveway and parking lot adjacent to the detention pond was not constructed as a roadway and it was not constructed to support the current volume of traffic. The area has been repaired by filling the holes several times over the last few years but this has been a temporary fix.

This project will remove material down to the base, compact the base and re-install 4” of asphalt in approximately 1,211 square feet. This project was not budgeted. The wet weather has exacerbated the situation and caused us to take action this fiscal year.

City staff is requesting the approval of this Ordinance in order to transfer \$9,601 from the General Fund to line item 01-39-6516, Parks & Landscape Projects to repair the asphalt driveway connected to Jersey Meadows Drive.

Council engaged in discussion about the life expectancy of the repairs. Staff reported that the repairs should last at least ten (10) years. Council also discussed the location of the repairs.

With no further discussion, Council Member Wubbenhorst moved to approve Ordinance No. 2017-12, amending the Parks & Recreation budget for the fiscal year beginning October 1, 2016 and ending September 30, 2017 by increasing line item 01-39-6516 in the amount of \$9,601 to repair the asphalt driveway connected to Jersey Meadows Drive. Council Member Harper seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

ORDINANCE NO. 2017-12

AN ORDINANCE OF THE CITY OF JERSEY VILLAGE, TEXAS, AMENDING THE PARKS & RECREATION BUDGET FOR THE FISCAL YEAR BEGINNING OCTOBER 1, 2016 AND ENDING SEPTEMBER 30, 2017 BY INCREASING LINE ITEM 01-39-6516 IN THE AMOUNT OF \$9,601 TO REPAIR THE ASPHALT DRIVEWAY CONNECTED TO JERSEY MEADOWS DRIVE.

- 10. Consider Resolution No. 2017-24, authorizing the City Manager to enter into a contract with Brown & Root for the removal of approximately 1,211 square feet of existing asphalt material down to the base, compaction of the base and re-installation of 4” of asphalt in the amount of \$9,601.00.**

Kimberly Terrell, Director of Parks and Recreation, introduced the item. She told City Council that this item is to authorize a contract for the repairs that were discussed in the previous item.

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

With no discussion on the matter, Council Member Harper moved to approve Resolution No. 2017-24, authorizing the City Manager to enter into a contract with Brown & Root for the removal of approximately 1,211 square feet of existing asphalt material down to the base, compaction of the base and re-installation of 4” of asphalt in the amount of \$9,601.00. Council Member Mitcham seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

RESOLUTION NO. 2017-24

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, AUTHORIZING THE CITY MANAGER TO ENTER INTO A CONTRACT WITH BROWN & ROOT FOR THE REMOVAL OF APPROXIMATELY 1,211 SQUARE FEET OF EXISTING ASPHALT MATERIAL DOWN TO THE BASE, COMPACTION OF THE BASE AND RE-INSTALLATION OF 4” OF ASPHALT IN THE AMOUNT OF \$9,601.00.

11. Consider Resolution No. 2017-25, accepting the proposal of Perdue Brandon Fielder Collins & Mott LLP (Perdue) and authorizing the City Manager to enter into a contract with Perdue for the collection of over 60 days fines, warrants and fees relating to the City of Jersey Village Municipal Court.

Isabel Kato, Finance Director, introduced the item. Background information is as follows: At its February 20, 2017 City Council Meeting, City Council directed staff to go out for an RFP for the collection of over 60 days fines, warrants and fees for the City’s Municipal Court and to present the results at the next City Council Meeting on March 20, 2017.

In response to the directives of City Council, Staff prepared an RFP for the professional collection services and mailed the RFP to five agencies asking for a response. Two firms responded to the City’s Request for Proposal (RFP). One was the City’s current collection firm Linebarger Attorneys at Laws, LLP and the other firm was Perdue Attorneys at Law, LLP. The original copies of these proposals are filed with the City Secretary.

A committee was created to review the proposals received in response to the RFP. The members of this committee are: Kimberly Terrell, Kevin Hagerich, and Mark Bitz. Results of the review indicate a higher score for Perdue Attorneys at Law, LLP.

City Attorney Hayes added that in accordance with Council’s instructions, staff developed a list of criteria for the RFP. Each item in the list was given a point value to assist the vendors in their responses. The RFP was mailed to five (5) vendors, of which

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

two responded. Ms. Hayes explained that the evaluation committee has made a recommendation based upon their review. City Council can accept the recommended proposal or select the other vendor. City Council makes the final choice for moving forward with Contract.

Council engaged in discussion about the contract, noting that it was not included in the meeting packet. Attorney Hayes explained that the contract will be drawn in accordance with the terms outlined in the response to the RFP. Council also discussed the difference between the two proposals. Finance Director Kato explained the two proposals, outlining the parameters for each. Council reviewed the scoring sheets from the committee. Kimberly Terrell, Director of Parks and Recreation served as spokesman for the committee. She was asked several questions by the Council to which she responded accordingly.

Council Member Harper moved to table the item until the Council has an opportunity to review the contract. This motion died for lack of a second.

With no further discussion on the matter, Council Member Sheppard moved to approve Resolution No. 2017-25, accepting the proposal of Perdue Brandon Fielder Collins & Mott LLP (Perdue) and authorizing the City Manager to enter into a contract with Perdue for the collection of over 60 days fines, warrants and fees relating to the City of Jersey Village Municipal Court. Council Member Mitcham seconded the motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Sheppard, and Wubbenhorst

Nays: Council Member Harper

The motion carried.

RESOLUTION NO. 2017-25

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, ACCEPTING THE PROPOSAL OF PERDUE BRANDON FIELDER COLLINS & MOTT LLP (PERDUE) AND AUTHORIZING THE CITY MANAGER TO ENTER INTO A CONTRACT WITH PERDUE FOR THE COLLECTION OF OVER 60 DAYS FINES, WARRANTS AND FEES RELATING TO THE CITY OF JERSEY VILLAGE MUNICIPAL COURT.

- 12. Consider Resolution No. 2017-26, authorizing the City Manager to enter into a five year contract, from 04/01/2017 to 03/31/2022, with Xerox Government Systems, LLC to provide Hosting and Technology Support Services for Firehouse Software.**

Bob Blevins, IT Director, introduced the item. Background information is as follows: The Fire Department currently uses Firehouse software to track, document and report on Fire and EMS calls. This software currently runs on one of our internal servers. They are requesting to move to the Web based version of this software. This will enable

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

Dispatch to automatically update Firehouse with initial call information. In addition, it will allow for the billing company to gain quicker access to billing information, reducing the time required to generate invoices. This will be an annual recurring cost and was a planned budgeted item with sufficient funds in the budget to cover the annual cost of this agreement.

With limited discussion on the matter, Council Member Harper move to approve Resolution No. 2017-26, authorizing the City Manager to enter into a five year contract, from 04/01/2017 to 03/31/2022, with Xerox Government Systems, LLC to provide Hosting and Technology Support Services for Firehouse Software. Council Member Mitcham seconded them motion. The vote follows:

Ayes: Council Members Mitcham, Holden, Harper, Sheppard, and Wubbenhorst

Nays: None

The motion carried.

RESOLUTION NO. 2017-26

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF JERSEY VILLAGE, TEXAS, AUTHORIZING THE CITY MANAGER TO ENTER INTO A FIVE YEAR CONTRACT, FROM 04/01/2017 TO 03/31/2022, WITH XEROX GOVERNMENT SYSTEMS, LLC TO PROVIDE HOSTING AND TECHNOLOGY SUPPORT SERVICES FOR FIREHOUSE SOFTWARE.

G. CLOSE THE REGULAR SESSION

Mayor Ray closed the Regular Session at 7:48 p.m. to convene into Executive Session pursuant to the Texas Open Meetings Act, Government Code Section 551.071– Consult with Attorney.

H. EXECUTIVE SESSION

- 1. Consult with attorney pursuant to the Texas Open Meetings Act Section 551.071 regarding pending lawsuit: *City of Jersey Village v. Texas Transportation Commission and Tryon D. Lewis, In His Official Capacity as Chair of the Texas Transportation Commission*, Case No. 15-0874, in the Supreme Court of Texas. City Attorney, Mary Conner**

I. ADJOURN EXECUTIVE SESSION

Mayor Ray adjourned the Executive Session at 8:08 p.m. and reconvened the Regular Session, stating that no final actions, decisions, or votes were had during the Executive session.

J. REGULAR SESSION CONTINUED

- 1. Discuss and take appropriate action on matter discussed in Executive Session regarding the pending lawsuit: *City of Jersey Village v. Texas Transportation***

REGULAR MEETING OF THE CITY COUNCIL
CITY OF JERSEY VILLAGE, TEXAS – March 20, 2017

Commission and Tryon D. Lewis, In His Official Capacity as Chair of the Texas Transportation Commission, Case No. 15-0874, in the Supreme Court of Texas.

This item was not called. No action was taken on this item.

K. MAYOR AND COUNCIL COMMENTS

Pursuant to Texas Government Code § 551.0415, City Council Members and City staff may make a reports about items of community interest during a meeting of the governing body without having given notice of the report. Items of community interest include:

- Expressions of thanks, congratulations, or condolence;
- Information regarding holiday schedules;
- An honorary or salutory recognition of a public official, public employee, or other citizen, except that a discussion regarding a change in the status of a person's public office or public employment is not an honorary or salutory recognition for purposes of this subdivision;
- A reminder about an upcoming event organized or sponsored by the governing body;
- Information regarding a social, ceremonial, or community event organized or sponsored by an entity other than the governing body that was attended or is scheduled to be attended by a member of the governing body or an official or employee of the municipality; and
- Announcements involving an imminent threat to the public health and safety of people in the municipality that has arisen after the posting of the agenda.

Council Member Wubbenhorst: Council Member Wubbenhorst had no comments.

Council Member Sheppard: Council Member Sheppard announced that the Jersey Village Women's Club will host a Health and Wellness Fair on July 15 at the Civic Center.

Council Member Mitcham: Council Member Mitcham welcomed Austin Bleess to Jersey Village.

Council Member Holden: Council Member Holden welcomed Austin Bleess to Jersey Village.

Council Member Harper: Council Member Harper welcomed Austin Bleess to Jersey Village.

Mayor Ray: Mayor Ray thanked Chief Foerster for his service as Interim City Manager. He then welcomed Austin Bleess to Jersey Village.

L. ADJOURN

There being no further business on the Agenda the meeting was adjourned at 8:10 p.m.

Lorri Coody, City Secretary

